

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

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MICHAEL BALTADONIS,
Plaintiff,

SUMMONS

- against -

Plaintiff designates
NEW YORK as the place
of trial.

THE CITY OF NEW YORK, COLIN SULLIVAN, a
police officer bearing Shield 13597 of
the 6th police precinct, KENTON GRANT, a
police officer bearing Shield 5639 of
the 6th police precinct, "JOHN" CAULEY,
a police officer of the 6th police
precinct whose full name is unknown to
plaintiff, "JOHN" MORRIS, a police
officer of the 6th police precinct whose
full name is unknown to plaintiff, "JOHN
DOE 1-10", names unknown but believed to
be police officers of the City of New
York involved in the arrest, assault and
battery of plaintiff,
Defendants,

The basis of venue is:
location of occurrence
pursuant to CPLR 504(3)

Plaintiffs reside at
634 Sloan Court
Matawan, NJ 07747

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To the above named Defendants:

You are hereby summoned to answer the complaint in this
action, and to serve a copy of your answer, or, if the complaint
is not served with this summons, to serve a notice of appearance
on the Plaintiff's attorneys within twenty days after the service
of this summons, exclusive of the day of service, where service
is made by delivery upon you personally within the state, or,
within 30 days after completion of service where service is made
in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the
relief demanded in the complaint.

Dated: Mineola, New York
December 28, 2015



Steve Marchelos
MARCHELOS LAW P.C.
Attorney for Plaintiff
87 Mineola Boulevard
Mineola, New York 11501
(516) 248-0202

TO: THE CITY OF NEW YORK
100 CHURCH STREET
NEW YORK, NY 10007

POLICE OFFICER COLIN SULLIVAN
Shield # 13597
6TH Precinct
233 West 10th Street
New York, NY 10014

POLICE OFFICER KENTON GRANT
Shield # 5639
6TH Precinct
233 West 10th Street
New York, NY 10014

POLICE OFFICER "JOHN" CAULEY
6TH Precinct
233 West 10th Street
New York, NY 10014

POLICE OFFICER "JOHN" MORRIS
6TH Precinct
233 West 10th Street
New York, NY 10014

JOHN DOE 1-10
New York City Police Department
c/o 6TH Precinct
233 West 10th Street
New York, NY 10014

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MICHAEL BALTADONIS,
Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, COLIN SULLIVAN, a
police officer bearing Shield 13597 of the
6th police precinct, KENTON GRANT, a police
officer bearing Shield 5639 of the 6th
police precinct, "JOHN" CAULEY, a police
officer of the 6th police precinct whose
full name is unknown to plaintiff, "JOHN"
MORRIS, a police officer of the 6th police
precinct whose full name is unknown to
plaintiff, "JOHN DOE 1-10", names unknown
but believed to be police officers of the
City of New York involved in the arrest,
assault and battery of plaintiff,
Defendants,

Index No:

-----X

MICHAEL BALTADONIS, by his attorneys, MARCHELOS LAW P.C.,
alleges the following, upon information and belief, as his
Complaint:

NATURE OF THE ACTION

1. This civil rights action arises from the defendant
Police Officers' unlawful and improper arrest and imprisonment of
plaintiff, malicious prosecution of plaintiff, assault, abuse,
battery and harassment of plaintiff, and use of intimidation and
excessive force upon plaintiff on September 28, 2014 through
October 28, 2015;

2. Plaintiff seeks declaratory relief pursuant to CPLR
§3001 and 28 U.S.C. § 2201, compensatory and punitive damages for

violation of plaintiff's civil rights pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986 and an award of costs, disbursements and attorneys fees under 42 U.S.C. §1988. Plaintiff also seeks compensatory and punitive damages under State Law Tort claims;

VENUE

3. That Venue for this action is placed in the County of New York because that is the county of occurrence of the acts alleged herein pursuant to CPLR 504(3);

NOTICE OF CLAIM

4. That on December 24, 2014, plaintiff caused a Notice of Claim to be served upon defendant, THE CITY OF NEW YORK;

5. The Notice of Claim was delivered to the person designated by law as a person to whom such claims may be presented and served;

6. The Notice of Claim was in writing, sworn to by or on behalf of the plaintiff and contained the name and post office address of the plaintiff and plaintiff's attorney, the nature of the claim, the time when the place where and the manner by which the claim arose, and the damage and injuries claimed to have been sustained;

7. That on December 28, 2015, plaintiff presented before the defendant, CITY OF NEW YORK, and gave testimony pursuant to General Municipal Law 50-h about the acts and occurrence which gave rise to this action;

8. The defendant, CITY OF NEW YORK, never requested a physical exam;

9. That at least thirty days have elapsed since the service of the Notice of Claim and that Defendant, CITY OF NEW YORK has either neglected, failed and/or refused to pay and/or adjust the claims within the statutory period of time;

10. This action has been started within one year and ninety days after the happening of the events upon which each claim is based;

PARTIES

11. Plaintiff, MICHAEL BALTADONIS, was and continues to be a resident of the State of New Jersey;

12. Defendant, the CITY OF NEW YORK is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York;

13. Defendant, the CITY OF NEW YORK, has established and maintains a police department which is an agency of the defendant, CITY OF NEW YORK;

14. At all times relevant, defendants the CITY OF NEW YORK employed the individual defendant, COLIN SULLIVAN, bearing Shield 13597 of the 6th Police Precinct [hereinafter referred to as "SULLIVAN"];

15. At all times relevant, defendant, SULLIVAN, was a duly appointed and acting police officer of the CITY OF NEW YORK;

16. At all times relevant, defendants the CITY OF NEW YORK employed the individual defendant, KENTON GRANT, bearing Shield 5639, of the 6th Police Precinct [hereinafter referred to as "GRANT"];

17. At all times relevant, defendant, GRANT, was a duly appointed and acting police officer of the CITY OF NEW YORK;

18. At all times relevant, defendants the CITY OF NEW YORK employed the individual defendant identified herein as "JOHN" CAULEY, full name unknown but believed to be a police officer from the 6th police precinct who was involved in the assault and/or arrest of plaintiff and who held plaintiff in custody at Bellevue Hospital on September 28, 2015 [hereinafter referred to as "CAULEY"];

19. At all times relevant, defendant, CAULEY, was a duly appointed and acting police officer of the CITY OF NEW YORK;

20. At all times relevant, defendants the CITY OF NEW YORK employed the individual defendant identified herein as "JOHN" MORRIS, full name unknown but believed to be a police officer from the 6th police precinct who was involved in the assault and/or arrest of plaintiff and who held plaintiff in custody at Bellevue Hospital on September 28, 2015 [hereinafter referred to as "MORRIS"];

21. At all times relevant, defendant, MORRIS, was a duly appointed and acting police officer of the CITY OF NEW YORK;

22. At all times relevant, defendant, the CITY OF NEW YORK employed the individual defendants named herein as "JOHN DOE" 1 -10, whose identities are currently unknown to plaintiff, but are police officers involved in the arrest, assault and battery of plaintiff and who are aware of the facts and circumstances giving rise to this proceeding based upon their involvement therein [hereinafter referred to as the "JOHN DOE OFFICERS";

23. At all times relevant, defendants, POLICE OFFICERS "JOHN DOE 1-10", were duly appointed and acting police officers of the CITY OF NEW YORK;

24. At all times relevant, the individual defendants, were acting under the color of State Law;

25. At all times relevant, the individual defendants, were acting both in their individual and official capacity as employees of defendant, THE CITY OF NEW YORK;

26. Notwithstanding the unconstitutional and unlawful conduct, the actions of the defendants were taken in the course of their duties and were incidental to their otherwise lawful functions as agents, servants and employees of THE CITY OF NEW YORK;

FACTS UNDERLYING PLAINTIFF'S CLAIMS FOR RELIEF

27. That on or about September 28, 2014 at approximately 2:30 a.m. of that day, plaintiff, MICHAEL BALTADONIS, was falsely

and unlawfully arrested, assaulted and battered by defendants, its agents, servants and/or employees while plaintiff was walking at the corner of 9th Avenue/Greenwich Street at and about its intersection with Little West 12th Street, New York, New York;

28. That the arrest occurred after plaintiff was leaving a night club located on Little West 12th Street in search of a taxi cab home;

29. Plaintiff had just had a discussion with a bouncer of the premises concerning a dispute over his bill and believed he was in the process of having the matter resolved;

30. That one of the defendants, believed to be defendant, Sullivan, interjected himself into the conversation, initially offered to resolve the dispute then compelled plaintiff to pay his bill, inclusive of the disputed charges, or be thrown in jail;

31. After plaintiff reluctantly paid the bill and the disputed charge, defendant Sullivan told plaintiff to leave the premises using an expletive for nor valid reason or purpose;

32. That plaintiff complied with the direction of the officer by walking down the block from the establishment and tried to call and text his companions inside the night club to advise what had occurred and to let them know he would not be returning inside the night club;

33. That when defendant SULLIVAN saw plaintiff stop to

make the call on the public sidewalk, he followed him down the block and told him to leave the location;

34. Plaintiff attempted to leave the location of the premises by crossing the street and walking to the corner much further away from the entrance of the club and tried, once again, to call his companions and let them know that he was leaving;

35. That the individual defendants, including SULLIVAN, the JOHN DOE OFFICERS (among whom may have included GRANT, CAULEY AND MORRIS), followed plaintiff to the corner and continued to force him away from the location of the premises;

36. That plaintiff was not under arrest at this time, nor did he do anything illegal to warrant this intrusion by the defendant police officers;

37. That the corner where plaintiff was situated was filled with people who were patronizing the night clubs and the area at that time;

38. That in order to get away from the defendants, plaintiff continued to walk north along 9th Avenue in an unsuccessful attempt to hail a cab to Pennsylvania Station;

39. Realizing that the taxi cabs were actually picking up passengers at the intersection hub of Little West 12th Street and 9th Avenue, and not stopping along 9th Avenue where he was walking, plaintiff, turned and walked backed to West 12th to increase his chances of hailing a cab;

40. That plaintiff walked passed the aforementioned defendant officers who had previously tailed him;

41. That plaintiff also walked through a lot of people who were in the area milling about around the bars and taverns and trying to hail cabs;

42. That as plaintiff walked passed the aforementioned defendant officers, they started to follow him again;

43. That plaintiff turned and asked these officers whether they were 'going to arrest him' and when they refused to answer, plaintiff responded, 'then why are you still following me?;'

44. That as plaintiff continued to walk away from the aforementioned defendant officers in search of a cab on Little West 9th Street, he heard one of the defendant officers shout "get down!";

45. That plaintiff could not just lie down on the ground because of the throngs of people in the area as well as the tables and chairs situated in the mall-like street, so he sat on a stoop of a building and waited for the aforementioned defendants to approach;

46. That the aforementioned defendant officers, without notice or warning, grabbed plaintiff from the stoop, threw him hard to the ground causing plaintiff to sustain great and severe pain to his elbow;

47. Plaintiff was also "mace" and tamed by the aforementioned defendant officers despite the fact that he was not, in any way, resisting arrest;

48. Plaintiff felt extreme pain, disorientation, shock, stress and extreme discomfort due to the use of these devices;

49. Plaintiff had not done a thing to warrant or justify the use of either of these devices;

50. Plaintiff thereafter felt one of the defendant officers kick him and press a knee into his back while he was violently handcuffed behind his back;

51. The aforementioned defendant officers utilized one pair of handcuffs and this caused a great deal of strain and severe discomfort to plaintiff's hands, arms and shoulders;

52. That the arrest was initiated without probable cause to believe any crime had been committed by the plaintiff;

53. That the physical assault, battery and use of force was unjustified and excessive by the aforementioned individual defendants as plaintiff did not commit any act which would provoke such a violent response from the defendants;

54. That after plaintiff was brought to his feet, he was searched and defendants purportedly found in plaintiff's possession a single pill which defendants called a controlled substance;

55. That the pill did not belong to plaintiff and

plaintiff believes that the defendant officers planted this pill on him;

56. Plaintiff was taken to the 6th precinct and then to Bellevue hospital for treatment for his injuries;

57. Plaintiff remained in handcuffs the entire time despite complaints to his elbow and shoulders due to the fact that a single set of cuffs was too short for his size and caused excessive stress and strain on his shoulder joints;

58. That defendants CAULEY and MORRIS were the individual defendants who held plaintiff in custody while in the hospital;

59. After his release from the hospital, plaintiff was brought back to the 6th police precinct and then taken to Central Booking where he remained confined in the custody of the City of New York until approximately 3:30 p.m.;

60. That plaintiff had knowledge of this confinement;

61. That plaintiff did not consent to the confinement;

62. That plaintiff was prevented from leaving the confinement;

63. That during this confinement, plaintiff was fingerprinted and photographed by, and at the direction of, the defendants;

64. That on September 28, 2014, at and about 3:30 p.m. plaintiff was arraigned before a Judge and charged with disorderly conduct, resisting arrest and criminal possession of a

controlled substance;

65. That defendants SULLIVAN and GRANT were the defendants who proffered these false charges against the plaintiff;

66. That defendants SULLIVAN and GRANT knew that these charges were false at the time of plaintiff's arrest and when they formally filed the charges against plaintiff;

67. That defendants SULLIVAN and GRANT filed these charges without probable cause, with a reckless, if not intentional, disregard for the truth, and thus with malice;

68. That it is believed that the defendants did plant this item on plaintiff in an attempt to justify an unlawful arrest and that SULLIVAN and/or GRANT either planted the item or knew it had been planted;

69. That on November 17, 2014, plaintiff returned to Court for the first time and the charges relating to possession of a controlled substance were dismissed;

70. That the item purportedly "found" in plaintiff's pocket on the morning of September 28, 2014, was not an illegal substance;

71. That possession of the item purportedly "found" in plaintiff's pocket on the morning of September 28, 2014, was not in violation of the law;

72. That plaintiff was forced to return to Court 6

additional times;

73. That on October 28, 2015, the charges that were levied against the plaintiff by defendants were dismissed without condition;

74. Plaintiff sustained great fear, physical pain, emotional harm, disgrace, embarrassment and loss of self esteem as a result of the aforesaid arrest, imprisonment, assault, battery, excessive use of force, intimidation and abusive behavior perpetrated upon him by defendants as a result of the afore-referenced events including anxiety and stress and physical injuries which required medical treatment;

75. Plaintiff suffered from a loss of liberty and deprivation of civil rights protected by the United States and New York State Constitution as a result of the afore-referenced events;

76. That the actions of the defendants were all perpetrated without probable cause to believe the plaintiff had committed any crime and were, in fact, instigated by the defendant police officers in gross dereliction of their duties;

77. That the use of force and excessive use of force employed by defendants upon the plaintiff were unjustified and unwarranted under the circumstances;

FIRST CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE SEARCHES AND SEIZURES UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO
THE UNITED STATES CONSTITUTION PREDICATED
UPON FALSE ARREST AND IMPRISONMENT

78. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

79. As a result of the aforescribed actions, including the arrest and imprisonment of plaintiff without probable cause, the individual defendants, SULLIVAN, GRANT, CAULEY, MORRIS and the JOHN DOE DEFENDANTS, individually deprived plaintiff, MICHAEL BALTADONIS, of the *rights, privileges and immunities* secured by the Constitution and laws of the United States and the Fourteenth Amendment;

80. As a result of the aforescribed actions, these defendants individually deprived plaintiff, MICHAEL BALTADONIS, of the substantive and due process *right to be free from unreasonable search and seizures* secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

81. As a result of the aforescribed actions, these defendants individually deprived plaintiff, MICHAEL BALTADONIS, of his *right to liberty* without due process of law secured by the Constitution and laws of the United States and the Fifth and

Fourteenth Amendments;

82. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

83. The aforescribed acts of these individual defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

84. As a result of the foregoing, plaintiff has suffered damages;

**SECOND CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE SEARCHES AND SEIZURES UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO
THE UNITED STATES CONSTITUTION PREDICATED
UPON USE OF EXCESSIVE FORCE**

85. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

86. As a result of the aforescribed actions, including the use of excessive physical force and intentional infliction of emotional harm upon the plaintiff, the defendants, SULLIVAN, GRANT, CAULEY, MORRIS and the JOHN DOE DEFENDANTS, individually deprived plaintiff, MICHAEL BALTADONIS, of the ***rights, privileges and immunities*** secured by the Constitution and laws of the United States and the Fourteenth Amendment;

87. As a result of the aforescribed actions, these defendants individually deprived plaintiff, MICHAEL BALTADONIS, of the substantive and due process *right to be free from unreasonable seizures* secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

88. As a result of the aforescribed actions, these defendants individually deprived plaintiff, MICHAEL BALTADONIS, of his *right to liberty* without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

89. The amount and type of physical force used upon plaintiff MICHAEL BALTADONIS by these defendants was unnecessary, improper, excessive and not reasonably justified under any circumstances;

90. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

91. The aforescribed acts of these defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights and physical well being;

92. The aforementioned use of force and infliction of emotional harm caused immediate injury in the form of physical and emotional pain, suffering, shock, fright, humiliation,

embarrassment, disgrace and deprivation of plaintiff's constitutional rights;

93. As a result of the foregoing, plaintiff has suffered damages;

**THIRD CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFFS' SUBSTANTIVE AND DUE PROCESS
RIGHTS TO BE FREE FROM UNREASONABLE SEARCHES
AND SEIZURES, AS PROTECTED BY ARTICLE 1 OF
THE NEW YORK STATE CONSTITUTION PREDICATED
UPON THE ARREST AND IMPRISONMENT OF PLAINTIFF
WITHOUT PROBABLE CAUSE**

94. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

95. As a result of the aforescribed actions, including the arrest and imprisonment of plaintiff without probable cause, the individual defendants, SULLIVAN, GRANT, CAULEY, MORRIS and the JOHN DOE DEFENDANTS, individually deprived plaintiff, MICHAEL BALTADONIS, of the ***rights, privileges and immunities*** secured by Article I, Sections 1, 5, 8, 11 and 12 the New York State Constitution;

96. As a result of the aforescribed actions, these defendants individually deprived plaintiff, MICHAEL BALTADONIS, of the substantive and due process ***right to be free from unreasonable search and seizures*** secured by Article I, Sections 1, 5, 8, 11 and 12 of the New York State Constitution;

97. As a result of the aforescribed actions, these

defendants individually deprived plaintiff, MICHAEL BALTADONIS, of his *right to liberty* without due process of law secured by Article I Sections 1, 8, 11 and 12 of the New York State Constitution;

98. The aforescribed acts of these individual defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

99. As a result of the foregoing, plaintiff has suffered damages;

**FOURTH CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE SEARCHES AND SEIZURES UNDER
ARTICLE 1 OF THE NEW YORK STATE CONSTITUTION
PREDICATED UPON THE USE OF EXCESSIVE FORCE**

100. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

101. As a result of the aforescribed actions, including the use of excessive physical force and intentional infliction of emotional harm upon the plaintiff, the defendants, SULLIVAN, GRANT, CAULEY, MORRIS and the JOHN DOE DEFENDANTS, individually deprived plaintiff, MICHAEL BALTADONIS , of the *rights, privileges and immunities* secured by Article I, Sections 1, 5, 8, 11 and 12 the New York State Constitution;

102. As a result of the aforescribed actions, these

defendants individually deprived plaintiff, MICHAEL BALTADONIS, of the substantive and due process *right to be free from unreasonable search and seizures* secured by Article I, Sections 1, 5, 8, 11 and 12 of the New York State Constitution;

103. As a result of the aforescribed actions, these defendants individually deprived plaintiff, MICHAEL BALTADONIS, of his *right to liberty* without due process of law secured by Article I Sections 1, 8, 11 and 12 of the New York State Constitution;

104. The aforescribed acts of these individual defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

105. As a result of the foregoing, plaintiff has suffered damages;

**FIFTH CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S
RIGHTS UNDER THE FOURTH, FIFTH AND FOURTEENTH
AMENDMENTS TO THE UNITED STATES CONSTITUTION
PREDICATED UPON THE MALICIOUS PROSECUTION OF
PLAINTIFF WITHOUT PROBABLE CAUSE**

106. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

107. As a result of the afore described actions, including the criminal prosecution of plaintiff without probable cause, defendants, SULLIVAN and GRANT, individually and

collectively deprived plaintiff, MICHAEL BALTADONIS, of the *rights, privileges and immunities* secured by the Constitution and laws of the United States and the Fourteenth Amendment;

108. As a result of the aforescribed actions, these defendants individually and collectively deprived plaintiff, MICHAEL BALTADONIS, of the *right to be free from unreasonable search and seizures* secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

109. As a result of the aforescribed actions, these defendants, individually and collectively, deprived plaintiff, MICHAEL BALTADONIS, of his *right to liberty* without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

110. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

111. The aforescribed acts of these defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

112. As a result of the foregoing, plaintiff has suffered damages;

SIXTH CAUSE OF ACTION FOR ASSAULT

113. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the

same force and effect as if set forth more fully herein;

114. As a result of the foregoing, defendants, individually and/or vicariously, by and through their agents, servants and employees, placed plaintiff in apprehension of imminent harmful and offensive contact, thereby committing an assault upon him;

115. As a result of the foregoing, plaintiff has suffered damages;

SEVENTH CAUSE OF ACTION FOR BATTERY

116. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

117. As a result of the foregoing, plaintiff was without just cause or provocation, maliciously, and intentionally battered and physically abused causing serious physical and emotional harm to plaintiff;

118. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally battered and physically abused plaintiff causing serious injury to plaintiff;

119. That the occurrence and injuries sustained by plaintiff, were caused solely by the malicious, reckless, and/or

intentional conduct of the defendants, individually and/or vicariously by and through their, agents, servants and/or employees, without any provocation on the part of the plaintiff, contributing thereto;

120. As a result of the foregoing, plaintiff has suffered damages;

EIGHTH CAUSE OF ACTION FOR IMPROPER USE OF EXCESSIVE FORCE

121. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

122. As a result of the foregoing, plaintiff was without just cause or provocation, maliciously, and intentionally battered and physically abused by virtue of the use of excessive force employed by defendants which included the use of mace and a Tazer, causing serious physical and emotional harm to plaintiff;

123. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally used excessive force upon plaintiff including the use of mace and a tazer causing serious injury to plaintiff;

124. That the occurrence and injuries sustained by plaintiff, were caused solely by the malicious, reckless, and/or intentional conduct of the defendants, individually and/or

vicariously by and through their, agents, servants and/or employees, without any provocation on the part of the plaintiff, contributing thereto;

125. As a result of the foregoing, plaintiff has suffered damages;

NINTH CAUSE OF ACTION FOR FALSE ARREST AND IMPRISONMENT

126. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

127. As a result of the foregoing, plaintiff was, without just cause or provocation, maliciously, recklessly, and/or intentionally arrested and imprisoned without probable cause resulting in an unlawful confinement, deprivation of liberty and other serious emotional injury to plaintiff;

128. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally arrested and imprisoned plaintiff without probable cause resulting in an unlawful confinement, deprivation of liberty and other serious emotional injury to plaintiff;

129. That the occurrence and injuries sustained by plaintiff were caused solely by the malicious, reckless, and/or

intentional conduct of the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without any provocation on the part of the plaintiff contributing thereto;

130. As a result of the foregoing, plaintiff has suffered damages;

**TENTH CAUSE OF ACTION FOR NEGLIGENT AND
INTENTIONAL INFLICTION OF EMOTIONAL HARM**

131. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

132. As result of the foregoing, defendants, individually and or vicariously, by and through their agents, servants and/or employees, intentionally, wantonly, recklessly, carelessly and/or negligently engaged in extreme and outrageous conduct measured by the reasonable bounds of decency tolerated by decent society thereby inflicting mental and emotional distress upon plaintiff;

133. As a result of the foregoing, plaintiff has suffered damages;

**ELEVENTH CAUSE OF ACTION FOR NEGLIGENT
SUPERVISION AND RETENTION**

134. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

135. That at all times hereinafter mentioned, the

defendant, CITY OF NEW YORK by their agents, servants and/or employees carelessly, negligently, and recklessly hired applicants for the position of police officers;

136. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK by their agents, servants and/or employees carelessly, negligently, and recklessly trained applicants for the position of police officers;

137. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently and recklessly supervised, controlled, managed, maintained and inspected the activities of its police officers;

138. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees caused, permitted and allowed its police officers to act in an illegal, unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or responsibilities;

139. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently and recklessly retained in its employ, police officers clearly unfit for the position who acted in an illegal, unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or responsibilities

prior to the date of the incident complained of herein;

140. That at the time and place aforesaid, the defendant CITY OF NEW YORK, by its agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally assaulted, battered, physically abused, attacked, threatened, intimidated, falsely arrested and imprisoned, plaintiff causing serious personal injury to plaintiff;

141. That the occurrence and injuries sustained by plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of the defendant, CITY OF NEW YORK, its agents, servants and/or employees as set forth above, without any provocation on the part of the plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected and retained its police officers and police department;

142. As a result of the foregoing, plaintiff has suffered damages;

TWELFTH CAUSE OF ACTION FOR PUNITIVE DAMAGES

143. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

144. That the aforesaid occurrence and resulting injuries

to plaintiff was due to the willful, wanton, reckless and/or malicious conduct of the defendants, individually, jointly and/or vicariously by and through their agents, servants and/or employees;

145. That the aforesaid occurrence and resulting injuries to plaintiff was due to the conduct of defendants, acting individually, jointly and/or vicariously by and through their agents, servants and/or employees which reflect utter indifference to the safety and well being of others and specifically the safety and well being of plaintiff;

146. That the aforesaid occurrence and resulting injuries to plaintiff was due to the conduct of defendants, individually, jointly and/or vicariously by and through their agents, servants and/or employees which reflect conscious disregard for the safety and well being of others and specifically the safety and well being of plaintiff;

147. That the conduct of defendants acting individually, jointly and/or vicariously by and through their agents, servants and/or employees exhibited a reckless disregard for human life and the safety and well being of others and more particularly, for the life, safety and well being of plaintiff;

148. That the conduct of defendants, acting individually, jointly and/or vicariously by and through their agents, servants and/or employees exhibited such a wanton dishonesty as to imply a

criminal indifference to the defendants' civil obligations as public servants;

149. As a result of the acts stated above, plaintiff has suffered serious physical and emotional harm in the form of personal physical injuries, great stress and anxiety, a deprivation of liberty without probable cause, denial of due process, invasion of privacy, mental distress, damage to character and reputation and plaintiff will continue to suffer same in the future;

150. As a result of the foregoing, plaintiff has been damaged;

151. As a result of the foregoing, defendants, including defendant SULLIVAN, GRANT, CAULEY, MORRIS and the JOHN DOE OFFICERS, should be made to pay punitive damages to punish them for their wanton, reckless and malicious acts and thereby discourage these defendants and others from acting in a similar way in the future;

REQUEST FOR RELIEF

WHEREFORE, Plaintiff, MICHAEL BALTADONIS, respectfully requests that judgment be entered as follows:

(A) Declaratory relief as follows:

1. As to the first cause of action, a declaration that plaintiff's right to be free from unreasonable searches and seizures under the Fourth Fifth and Fourteenth Amendment of the United States Constitution was violated predicated upon the unlawful arrest and imprisonment of

plaintiff;

2. As to the second cause of action, a declaration that plaintiffs' right to be free from unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendment of the United States Constitution was violated predicated upon the use of excessive force;
3. As to the third cause of action, a declaration that plaintiff's substantive and procedural due process rights to be free from unreasonable searches and seizures, as protected by Article 1 of the New York State Constitution predicated upon the unlawful arrest and imprisonment of plaintiff was violated;
4. As to the fourth cause of action for violation of plaintiff's substantive and procedural due process right to be free from unreasonable searches and seizures under Article of the New York State Constitution predicated upon the use of excessive force, was violated;
5. As to the fifth cause of action, a declaration that plaintiff's right under the Fourth, Fifth and Fourteenth Amendment of the United States Constitution was violated predicated upon the malicious prosecution of plaintiff without probable cause;

(B) As to the first through eleventh causes of action, compensatory damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction;

(C) As to the first through twelfth causes of action, punitive damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction, by reason of the wanton,

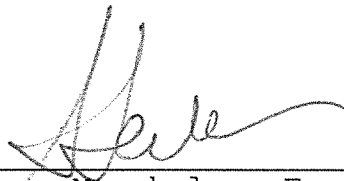
willful and malicious character of the conduct complained of herein;

(D) As to the first through twelfth causes of action, an award to plaintiff of the costs and disbursements herein;

(E) As to the first through fifth causes of action, an award of attorney's fees as provided under 42 U.S.C. § 1988; and

(F) Such other and further relief as this Court may deem just, proper and equitable

Dated: Mineola, New York
December 28, 2015



Steve Marchelos, Esq.
MARCHELOS LAW P.C.
Attorneys for Plaintiff
MICHAEL BALTADONIS
87 Mineola Boulevard
Mineola, New York 11501
(516) 248-0202

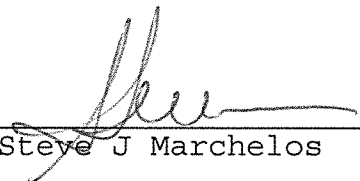
ATTORNEY VERIFICATION

Steve J Marchelos, an attorney duly admitted to practice law in the Courts of the State of New York affirms the following to be true under the penalties of perjury pursuant to CPLR 2106.

That affirmant is the attorney for the plaintiff in the action within; that affirmant has read the foregoing **COMPLAINT** and knows the contents thereof; that the contents are true to affirmant's own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes them to be true; that the reason this verification is not made by plaintiff and is made by affirmant is that plaintiff is not presently in the county where the attorneys for the plaintiff have their office.

Affirmant further says that the source of deponent's information and the grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are from conversations with said plaintiff and investigations made by affirmant's office on behalf of said plaintiff.

Dated: Mineola, New York
December 28, 2015



Steve J Marchelos

Index No:
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

MICHAEL BALTADONIS,
Plaintiff,

- against -

THE CITY OF NEW YORK, COLIN SULLIVAN, a police officer bearing Shield 13597 of the 6th police precinct, KENTON GRANT, a police officer bearing Shield 5639 of the 6th police precinct, "JOHN" CAULEY, a police officer of the 6th police precinct whose full name is unknown to plaintiff, "JOHN" MORRIS, a police officer of the 6th police precinct whose full name is unknown to plaintiff, "JOHN DOE 1-10", names unknown but believed to be police officers of the City of New York involved in the arrest, assault and battery of plaintiff,
Defendants.

SUMMONS AND VERIFIED COMPLAINT

MARCHELOS LAW P.C.

ATTORNEYS FOR PLAINTIFF(S)

87 MINEOLA BLVD.

MINEOLA, NEW YORK 11501

(516) 248-0202

Service of a copy of the within

is hereby admitted.

Dated:

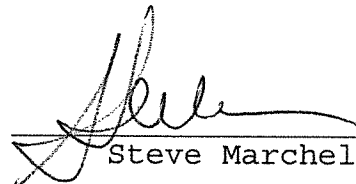
.....
Attorney(s) for

Attorney Certification Pursuant to 22 NYCRR Section 130-1.1.A

The undersigned, an attorney duly admitted to practice law in the Courts of the State of New York, respectfully affirms the truth of the following statement under the penalty of perjury pursuant to CPLR §2106

The undersigned attorney hereby certifies that to the best of his/her knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the presentation of the paper(s) or the contents herein are not frivolous as defined in Subsection C of Section 130-1.1.

Dated: 12/28, 2015


Steve Marchelos